

In the Supreme Court of Bangladesh

High Court Division

(Criminal Appellate Jurisdiction)

Criminal Appeal No.795 of 2024

In the matter of:

An application under section 28 of the Nari-O-Shihsu Nirjatan Daman Ain, 2000 (as amended in 2003).

-And-

In the matter of:

Md. Tajajuddin Mondol

.... Accused-appellant

-Versus-

The State and another

.... Opposite Party

Mr. S. M. Rifaz Uddin, Advocate

.... For the accused-appellant

Mr. Sujit Chatterjee, D.A.G

... For the State

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 5th March, 2024.

This appeal under section 28 of the Nari-O-Shihsu Nirjatan Daman Ain, 2000 (as amended in 2003) at the instance of sole accused Md. Tahajuddin Mondol is directed against order No.36 dated 08.01.2024 passed by the learned Judge of Nari-O-Shihsu Nirjatan

Daman Tribunal, Kushtia rejecting a petition filed by the appellant for recall of P.Ws No.1-4 for further cross examination.

Mr. S. M. Rifaz Uddin learned Advocate for accused-appellant submits that there were land dispute between the informant and the accused appellant and recently those have been settled mutually. This false case was instituted due to above land dispute. The victim was medically examined within 24 hours of the alleged occurrence but P.W.5 Dr. Tanjima Siddiqua did not find any sign of rape. Since P.W. No.1-4 were not cross examined on the point of above land dispute they are required to be recalled and further cross examined on above point.

Mr. Sujit Chatterjee learned Deputy Attorney General frankly concedes that since the offence allegedly committed by the appellant carries the highest sentence he should be provided necessary space for defend himself and on above ground P.W. No.1-4 may be recalled for further cross examination by the defence.

We have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

We have perused the evidence of P.W. Nos.1-4 and considered the submissions of the learned Advocate for appellant that due to land dispute between the parties this case was filed and above land dispute has been amicably settled.

On consideration of above materials on record we hold that the ends of justice will be met if the impugned order passed by the learned Judge of the Nari-O-Shishu Nirjatan Daman Tribunal is set aside and P.W.Nos.1-4 are recalled for further cross examination.

Accordingly we are setting aside the impugned order and directing the learned Judge of the Nari-O-Shishu Nirjatan Daman Tribunal, Kushtia to recall P.W. Nos.1-4 within 15 days from the date of receipt of this order for cross examination by the appellant and without granting any adjournment at the instance of the appellant and proceed with the disposal of this case on merit in accordance with law.

With above direction this appeal is disposed of.